

Court No. - 1

Case :- WRIT - C No. - 4049 of 2020

Petitioner :- Suhel @ Sohil Ansari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bhaskar Bhadra

Counsel for Respondent :- C.S.C.

Hon'ble Ramesh Sinha,J.

Hon'ble Ajit Kumar,J.

As prayed, put up on 13.02.2020, in the regular fresh list.

Order Date :- 6.2.2020

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(Ajit Kumar,J.) (Ramesh Sinha,J.)

Court No. - 32

Case :- WRIT - C No. - 4049 of 2020

Petitioner :- Suhel @ Sohil Ansari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bhaskar Bhadra

Counsel for Respondent :- K.D.S.Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

As prayed by learned counsel for the petitioner, put up on 17th February, 2020, as fresh, showing the name of Shri K.D.S.Rathore, as counsel for the respondents.

Order Date :- 13.2.2020

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Court No. - 32

Case :- WRIT - C No. - 4049 of 2020

Petitioner :- Suhel @ Sohil Ansari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bhaskar Bhadra

Counsel for Respondent :- K.D.S.Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

As prayed by the learned counsel for the petitioner, put up
as fresh on 24.2.2020.

Order Date :- 18.2.2020

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Court No. - 32

Case :- WRIT - C No. - 4049 of 2020

Petitioner :- Suhel @ Sohil Ansari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Bhaskar Bhadra

Counsel for Respondent :- K.D.S.Rathore

Hon'ble Shashi Kant Gupta,J.

Hon'ble Vipin Chandra Dixit,J.

This writ petition has been filed, inter alia, for the following reliefs:

" (a) issue a writ, order or direction in the nature of certiorari quashing impugned citation dated 5.11.2019 and impugned notice dated 07.05.2019 issued by the respondent Nos. 3 and 4(Annexure Nos. 04 and 03 to the writ petition).

(b) Issue a writ, order or direction in the nature of mandamus commanding the respondent No.4 to decide the objection/representation made by the petitioner before him within time bound period, which may be fixed by this Hon'ble Court."

Heard the learned counsel for the petitioner and Mr. Kapil Dev Singh Rathore, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 24.3.2020 at 11.00 A.M. before the Respondent No.4, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.4, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of eight weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 24.2.2020

P.P.